

SENATE No. 303

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act for Community Institution Stabilization.

PETITION OF:

NAME:

Vincent Dixon

DISTRICT/ADDRESS:

60 Lake St Apt N Winchester MA 01890

SENATE No. 303

By Mr. Lewis (by request), a petition (accompanied by bill, Senate, No. 303) of Vincent Dixon, for legislation relative to Community Institution Stabilization. Economic Development and Emerging Technologies.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 230 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act for Community Institution Stabilization.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The Massachusetts General Laws are hereby amended by inserting the
2 following new chapter:

3 An Act for Community Institution Stabilization.

4 1.) When an organization, generally viewed as a Community Institution, resolves, and/or
5 decides to dissolve, and/or to dispose of substantial property, one or more individuals, being in
6 good standing, as members, and/or affiliates of such organization, and Community Institution,
7 shall be permitted to have the Right of First Refusal (RFR) , regarding the disposition, transition
8 of, and/or alternative programming uses, of certain properties, that are properly viewed as
9 Community Institution Landmarks (CIL).

2.) It is in the public interest to provide, and establish, certain opportunities for stabilizing community institutions, and their memberships.

3.) An important aspect of the unique communities, and vitality of our Commonwealth of Massachusetts, is the presence of particular buildings, churches, and other institutions, with architectural, programmatic, and archival record resources.

4.) As a society changes, various organizations, and structures intersect with many different trends, events, and other circumstances. It is in the public interest, to keep certain physical, often iconic structures, and they often are protected by various historical designations, and/or other opportunities.

5.) Just as certainly, the usages of certain of these structures, provide certain value, and values, to local communities, and it is in the public interest, to allow reasonable change, while encouraging certain aspects of stability. When many changes occur, they are often good ones; but changes often can lead to unfortunate disruptions, and sometimes even social harm.

6.) This statute, is formed, to encourage, certain aspects of transitional bridging, in communities, in ways that strengthen them, even in the midst of significant changes.

7.) Such Community Institution, and/or organization, chartered under the Laws of Massachusetts, and/or in well-recognized operation for at least ten (10) years, shall, when such Right of First Refusal (RFR) , is requested; obtain, and/or assist the obtaining of, a reasonable assessed valuation, determining the value of the property, and/or properties, and also the economic value of particular continuing programming.

30 8a.) A Community Institution, for the purposes of this statute, is, and may be defined, as
31 a building, such as a school, library, church, or structure which is iconic to many in the
32 community, and has held significant community services, whether educational, cultural,
33 religious, or a similar community value activity.

34 8b.) A declaration that a particular structure, and/or organizational programs, constitute a
35 Community Institution, may be made by a municipal body, such as a Board of Selectmen, City
36 Council, Board of Alderman, Town Meeting, Planning Board, Historical Commission, or other
37 relevant body; but need not be obtained, if individuals, in good standing, from the Community
38 Institution, have filed a Community Institution Membership Right of First Refusal (RFR), with
39 the local municipal authorities, and the Community Institution.

40 9.) When such circumstances occur, individuals seeking Right of First Refusal (RFR),
41 may request the appointment of a neutral, non-interested individual, as a Special Community
42 Trustee (SCT), to determine, and facilitate the circumstances, continuing the use of the structure,
43 and/or its alternative potential uses. That Trustee shall have reasonable powers, to provide public
44 hearings, private, and transparent negotiations, and other reasonable roles, to permit the
45 evolution of the programs, and properties, going forward, in a community stabilizing manner.

46 10.) The Special Community Trustee (SCT) shall, in their considerations, and decisions,
47 prefer reasonable offers, from the Community Institution membership, and/or properly identified
48 members thereof, as long as the funding, financing, and economic viability of any such offer, is
49 verified, and certified. Such decisions, shall be publicly announced, and a written Decision
50 Report, shall be provided by the Special Community Trustee (SCT).